Topic 6 — Union Executive

Covers syllabus (click to expand)

President: President (Art. 52–62) | Election of President | Electoral College | Proportional Representation by Single Transferable Vote | Value of vote | Qualifications & Conditions | Oath | Term & Vacancy | Impeachment (Art. 61) | Powers of President (Executive, Legislative, Financial, Judicial, Diplomatic, Military, Emergency) | Veto Powers (Absolute (निरपेक्ष), Suspensive, Pocket) | Pardoning Power (Art. 72) | Ordinance-Making Power (Art. 123) **Vice-President & Council of Ministers:** Vice-President (Art. 63–71) | Election & Removal of VP | Prime Minister (Art. 74, 75, 78) | Council of Ministers | Collective Responsibility | Cabinet | Kitchen/Inner Cabinet | Cabinet Committees | Cabinet Secretariat | PMO | Deputy Prime Minister | Doctrine of Pleasure | Attorney General (महान्यायवादी) (Art. 76) **Protocol:** Warrant / Table of Precedence (वरीयता क्रम) (1979) | Ranks 1–11 high-yield | Ceremonial only — not succession (उत्तराधिकार क्रम)

Sources baked in: Laxmikanth (Union Executive), Constitution Part V, UPPCS Prelims PYQs 2018–2025 **Weight:** ★★★ — electoral college composition; PR-STV; impeachment vs removal; veto types; Art. 72 vs 161; ordinance; VP = ex-officio Chairman but **not** a member of RS; CoM responsible to **Lok Sabha only**; AG holds office during pleasure; **Warrant of Precedence** ranks (CJI = Speaker = **6**; AG = **11**) **Last verified:** September 2026 — Ghatnachakra Extra Drill (President + VP + CoM/PM + AG/CAG + Precedence); teaching gap-pass for the same blocks **Current Affairs:** Droupadi Murmu — **15th President** (25 July 2022); **C. P. Radhakrishnan** — incumbent Vice-President (2025–)

Current Affairs (Union Executive)

Year	Fact	Why it matters
2022	**Droupadi Murmu** elected **15th President** (took office 25 July 2022)	First **tribal** (दिकू) and **second woman** President; youngest to hold the office
2022	Jagdeep Dhankhar sworn as **16th** Vice-President	Electoral college = **all** MPs (elected + nominated); States out
2025	**C. P. Radhakrishnan** sworn as Vice-President	Continuity of Art. 64 / Art. 67 traps

For the aspirant: verify the **current** President / Vice-President name and the latest Cabinet Committee reshuffle — office-holders change.

UKPCS Prelims 2025

Q. UKPCS Prelims 2025, Q116

Who participates in the election of the Vice-President of India?

A. All the members of both Houses of Parliament B. Members of Parliament and State Legislatures C. Members of Rajya Sabha (राज्यसभा) only D. Members of Lok Sabha (लोकसभा) only

Show answer

Logic: VP electoral college excludes State legislatures — unlike the President's election. **Ans: A (Series B provisional key).** Both Houses of Parliament (including nominated members). State Assemblies vote only for the President.

Union Executive — the frame

- **Part V, Articles 52–78.** The Union Executive consists of the **President, Vice-President, Prime Minister, Council of Ministers, and the Attorney General**.
- India follows the **parliamentary (Westminster) system**: the President is the **nominal / de jure** head; the **real / de facto** executive is the **Council of Ministers headed by the Prime Minister**.
- **Art. 53:** executive power of the Union is **vested in the President**, exercised by him directly or through officers subordinate to him — but in practice on the **aid and advice** of the CoM (Art. 74).

> **Logic:** "Executive power of the Union is vested in the **President**" (Art. 53). The PM is nowhere called the head of the executive by the Constitution — he heads the **Council of Ministers**.

President — Election (Art. 52–55)

Electoral College (Art. 54)

The President is elected **indirectly** by an Electoral College consisting of: - **Elected** members of **both Houses of Parliament** (Lok Sabha + Rajya Sabha), and - **Elected** members of the **Legislative Assemblies of States**, and - **Elected** members of the Legislative Assemblies of **Delhi and Puducherry** (added by the **70th Amendment, 1992**).

Included	Excluded
Elected MPs (both Houses)	**Nominated** members of Parliament
Elected MLAs of States	Members of **Legislative Councils** (Vidhan Parishad (विधान परिषद))
Elected MLAs of Delhi & Puducherry	**Nominated** MLAs; other UT assemblies

> ** note (repeat trap): **Nominated members and members of State** Legislative Councils **do** not **vote in the** Presidential **election. (They *do* vote in the** Vice-President's** election.)

PYQ — UPPCS Prelims 2024, Q39

Who among the following participates in the election of the President of India?

A. Members of Lok Sabha only B. Members of Rajya Sabha only C. Elected members of Parliament and State Legislative Assemblies D. All members of Parliament and State Legislatures

Show answer

Ans: C. Only **elected** members of Parliament and State Legislative Assemblies (plus Delhi & Puducherry) — not "all" (nominated excluded).

Manner of election (Art. 55)

- **System:Proportional Representation** by means of the **Single Transferable Vote (STV)**, by **secret ballot**.
- **Uniformity** of representation across States and **parity** between the States as a whole and the Union.
- **Value of an MLA's vote** = (Population of State as per **1971 census** ÷ total elected MLAs) ÷ **1000**.
- **Value of an MP's vote** = (Total value of votes of all MLAs of all States ÷ total number of elected MPs).
- A candidate must secure a fixed **quota** (50% of valid votes + 1) to be declared elected.

> **Logic:** Population is frozen at the **1971 census** (by the 84th Amendment) for value calculation until the first census after 2026. STV + PR is used for **President, VP, Rajya Sabha and Legislative Council** elections — **not** for Lok Sabha (which is FPTP).

Nomination: proposed by **50** electors and seconded by **50** electors; security deposit **₹15,000** (forfeited if the candidate's valid votes do not exceed **one-sixth** of the quota needed to win). Election disputes → **Supreme Court** (Art. 71). Acts done before a void declaration remain valid. Election **cannot** be challenged or postponed merely because the electoral college is incomplete (Art. 71(4)).

> **Vote-value trap:** Higher elective Assembly seats in the denominator → **lower** value of each MLA's vote (not higher). MP vote value is the **same** for every elected MP of Lok Sabha and Rajya Sabha.

President — Qualifications, Oath, Term (Art. 56–62)

Item	Fact
Qualifications (Art. 58)	Citizen of India; completed **35 years**; qualified for election as a member of the **Lok Sabha**; must **not** hold any office of profit
Conditions (Art. 59)	Not a member of either House / State legislature (if elected, seat vacated); no other office of profit; official residence rent-free; emoluments not reduced during term
Oath (Art. 60)	Administered by the **Chief Justice of India** (in his absence, the senior-most SC judge)
Term (Art. 56)	**5 years**; can resign (addressed to the **Vice-President**); **re-election** allowed any number of times (Art. 57)

Item	Fact
Vacancy (Art. 62)	Election to fill a vacancy by expiry within the term; a vacancy by death/resignation/removal must be filled **within 6 months**; VP acts until then
If VP also vacant	**Chief Justice of India** acts as President (*President (Discharge of Functions) Act, 1969*); if CJI's office is vacant, the **senior-most SC judge** available
Emoluments	Paid from the **Consolidated Fund of India** (भारत की संचित निधि) (current teaching figure: **₹5 lakh** per month)

> **Logic:** For President's qualification the benchmark is **Lok Sabha** membership eligibility (not Rajya Sabha). Citizenship by **birth** is **not** required. Oath is before the **CJI**. Seat as MP/MLA is vacated on entering office (Art. 59), not before contesting.

President — Impeachment (Art. 61)

- **Only ground:"violation of the Constitution"** (the term is not defined).
- **Procedure (प्रक्रिया):** charges may be initiated by **either House**; the resolution must be: 1. Signed by at least **one-fourth (1/4)** of the total members of that House, with **14 days' notice**; 2. Passed by a **two-thirds (ते-भागा) (2/3) majority of the total membership (सदन की कुल सदस्य संख्या का)** of that House; 3. Investigated by the **other House**; the President has the right to appear/be represented; 4. If the other House also passes it by **2/3 of total membership**, the President is removed from the date of the resolution.

Impeachment feature	Fact
Nature	**Quasi-judicial** procedure
Who participates	**Nominated** members of Parliament **can** take part (they didn't in his election)
Who does **not**	**Elected members of State Legislative Assemblies** (they voted in the election but **not** in impeachment)
Ground	Violation of the Constitution **only**

> **Logic:** Reverse trap — **nominated MPs**: no vote in *election*, but **yes** in *impeachment*. **State MLAs**: yes in *election*, **no** in *impeachment*. No President has ever been impeached.

President — Powers

Category	Key powers
Executive	All Union executive action is in his name; appoints PM, other ministers, AG, CAG, CJI & judges, Governors, Election Commissioners, UPSC/FC chairs, etc.
Legislative	Summons/prorogues Parliament, dissolves Lok Sabha; **special address** (Art. 87); nominates 12 RS members (literature, science, art, social service) & (earlier) Anglo-Indians; assents to Bills (Art. 111) — **veto**; **ordinance** (Art. 123)
Financial	Money Bill needs prior recommendation; causes Budget to be laid; Contingency Fund (आकस्मिकता निधि) at his disposal; constitutes the **Finance Commission** (वित्त आयोग)
Judicial	Appoints judges; seeks **advisory opinion** (Art. 143); **pardoning power** (Art. 72)
Diplomatic	Treaties/agreements negotiated in his name; appoints & receives diplomats
Military	**Supreme Commander** of the Defence Forces; appoints chiefs (actual power regulated by law)
Emergency	National (352), President's Rule (राष्ट्रपति शासन) (356), Financial (360)

PYQ — UPPCS Prelims 2021, Q84

With reference to the special address of the President of India, which of the following statements is/are correct?

1. The President addresses the joint meeting of both Houses of Parliament at the commencement of the first session after each general election of the House of the People and at the commencement of the first session of each year.
2. The President in his address informs the Parliament of the causes of its summons.

A. 1 only B. 2 only C. Both 1 and 2 D. Neither 1 nor 2

Show answer

Ans: A — 1 only. Art. 87 special address is at the first session after each general election and the first session of each year. "Informing the causes of summons" is not a feature of the Indian special address.

PYQ — UPPCS Prelims 2024, Q22

Which of the following is/are stated in the Constitution of India?

1. The President shall not be a member of either of the Houses of the Parliament.
2. The Parliament shall consist of the President and both Houses.

A. Both 1 and 2 B. Only 2 C. Neither 1 nor 2 D. Only 1

Show answer

Ans: A — Both. Art. 79: Parliament = President + Rajya Sabha + Lok Sabha; a member of either House who becomes President must vacate the seat (Art. 59).

PYQ — UPPCS Prelims 2023, Q9Assertion (A): The President is a part of the Parliament.

Reason (R): A Bill passed by the two Houses of Parliament cannot become a law without the assent of the President.

A. Both (A) and (R) are true, but (R) is not the correct explanation of (A) B. Both (A) and (R) are true and (R) is the correct explanation of (A) C. (A) is true, but (R) is false D. (A) is false, but (R) is true

Show answer

Ans: A. Both true; the President is part of Parliament by **composition (Art. 79)** — the assent requirement is a related consequence, not the reason.

PYQ — UPPCS Prelims 2023, Q4Assertion (A): The President can recommend (सिफारिश) to the Parliament to change the boundary of any State after seeking the views of the concerned Legislature of that State within the specified period.

Reason (R): It is not mandatory for the President to accept the proposal of the concerned State Legislature.

A. Both (A) and (R) are true and (R) is the correct explanation of (A) B. Both (A) and (R) are true, but (R) is not the correct explanation of (A) C. (A) is true, but (R) is false D. (A) is false, but (R) is true

Show answer

Ans: B. Both true (Art. 3 procedure); the views of the State legislature are **not binding**, but that is not the *explanation* of the President's power to recommend.

President — Veto Powers (Art. 111)

Veto	Meaning	In India?
Absolute	Withholds assent entirely; the Bill dies	Yes (e.g. private members' bills; bills of an ousted cabinet)
Suspensive	Returns the Bill for reconsideration; if **repassed** (with or without changes) he **must** assent	Yes — but **not** for a **Money Bill**
Pocket	Neither assents, returns, nor rejects — keeps it pending indefinitely (**no time limit** in Art. 111)	Yes (famously used by Zail Singh on the 1986 Postal Bill)
Qualified	Override needs a higher majority	**No** — this exists in the **USA**, not India

- **Money Bill (Art. 111):** the President can **assent** or **withhold** assent, but can **NOT return** it for reconsideration (it was introduced on his own recommendation).
- **Constitutional Amendment Bill:** after the **24th Amendment (1971)**, the President is **bound to give assent** — no veto.

- **State Bills reserved by the Governor (Art. 201):** the President may assent, withhold assent (absolute veto), or direct the Governor to return it; he can use a **pocket veto** (no time limit) and even a second reservation.

> **Logic:** India has **no qualified veto**; the President **cannot return a Money Bill**; must assent to a **Constitution Amendment Bill** (24th).

President — Pardoning Power (Art. 72) vs Governor (Art. 161)

Power	President (Art. 72)	Governor (Art. 161)
Pardon, reprieve, respite, remission, commutation	**Yes**	Yes
Death sentence	**Can** pardon	**Cannot** pardon (only commute/suspend/remit)
Court-martial (military) punishment	**Can** pardon	**Cannot**
Punishment under a **Union law**	Yes	No

- **Pardon** = fully absolves; **Commutation** = substitutes a lighter punishment; **Remission** = reduces the period without changing character; **Respite** = lesser sentence due to special facts (e.g. pregnancy); **Reprieve** = temporary stay of execution.
- Pardoning power is subject to **judicial review** (*Epuru Sudhakar* 2006); exercised on the **advice of the CoM**.

> **Logic:** Only the **President** can pardon a **death sentence** or a **court-martial** sentence — the Governor cannot.

President — Ordinance-Making Power (Art. 123)

- Promulgated when **both Houses are not in session** (or one is not) and immediate action is needed.
- Has the **same force and effect** as an Act of Parliament; can be **retrospective**; cannot make what Parliament cannot enact.
- Must be **laid before both Houses** when they reassemble; **ceases to operate six weeks** from reassembly (or earlier if disapproved).
- **Cannot** be used to **amend the Constitution**.
- *D.C. Wadhwa* (1987): re-promulgation of ordinances is a "fraud on the Constitution"; *Krishna (कृष्णा) Kumar Singh* (2017): re-promulgation without placing before legislature is unconstitutional; laying before the House is **mandatory**.

Ordinance vs Bill — compare card

Point	Ordinance (Art. 123)	Ordinary Bill	Money Bill	Constitution Amendment Bill
When	Houses **not** in session; immediate need	Houses in session	LS only introduction; RS limited	Special majority path
Force	Same as an Act until it lapses	Becomes Act after assent	Becomes Act after assent	Amends Constitution after assent
Assent / return	Laid before Houses; **no** Art. 111 return story	President may assent, withhold, return, or pocket	Assent or withhold — **cannot return**	President **must** assent (24th Amendment)
Life	**Six weeks** from reassembly (or earlier disapproval)	Permanent until repealed / struck down	Same as ordinary Act	Permanent until later amendment
Joint sitting (संयुक्त बैठक)	Not the ordinance path	Possible for ordinary Bills	**No** joint sitting	**No** joint sitting
Amend Constitution?	**No**	**No** (ordinary path)	**No**	**Yes** — that is its purpose

- An ordinance is **temporary executive law-making** on ministerial advice, not a shortcut past a Constitution Amendment Bill.
- Governor ordinance power sits under **Art. 213** with a parallel life rule for the State legislature — do not merge 123 and 213 into one article number.

> **Logic:** Ordinance = **6 weeks** from reassembly; a co-terminus executive law-making power exercised on ministerial advice. It is **not** a Money Bill and **cannot** amend the Constitution.

Vice-President (Art. 63–71)

Identity: Second-highest constitutional office | Modelled on the **American** Vice-President | **Ex-officio Chairman** of the Rajya Sabha | **Not** a member of either House

Office and role

- **Article 63** says there **shall be** a Vice-President of India.
- In the official **Order of Precedence**, the Vice-President stands **next to the President** (rank **2**).
- Under **Article 64**, the Vice-President is the **ex-officio Chairman of the Council of States (Rajya Sabha)**. He is **not** a member of the Rajya Sabha or of any House.
- When the Vice-President **acts as President** or **discharges the functions of the President**, the **Article 64 proviso** applies: he **does not** perform the duties of the Rajya Sabha Chairman, and he

draws the **President's** salary and allowances — not the Chairman's pay.

- The Constitution **does not** fix separate emoluments for the Vice-President *as* Vice-President. He draws salary in his capacity as **ex-officio Chairman of the Rajya Sabha** (teaching figure: **₹4 lakh** per month).

Election (Art. 66)

- The Vice-President is elected by an **electoral college** of **members of both Houses of Parliament — elected and nominated** (**Article 66(1)**).
- **State legislatures do not** take part. This is the classic contrast with the President's election.
- Voting (गणपूर्ति) uses **proportional representation by means of the single transferable vote** and a **secret ballot**.
- Eligibility under **Article 66(3):** citizen of India, completed **35 years**, and **qualified for election as a member of the Rajya Sabha** (not the Lok Sabha — that is the President's qualification trap).

Term, resignation, removal (Art. 67)

- Term is **five years** (**Article 67**). Re-election is allowed.
- Resignation is by writing under his hand addressed to the **President** (**Article 67(a)**).
- Removal is **not** called impeachment. Under **Article 67(b)**, a resolution of the **Rajya Sabha** (राज्यसभा) passed by a **majority of all the then members** of the Council, and **agreed to by the Lok Sabha**, removes him. At least **fourteen days' notice** must be given. **No ground** is specified in the text.

Vacancy and Art. 71

- During a presidential vacancy, the Vice-President **acts as President** until a new President enters office (within the **six-month** outer limit for a fresh election).
- If both the President and the Vice-President are unavailable while the Vice-President is already discharging presidential functions and then resigns, the **Chief Justice of India** (or the senior-most Supreme Court judge available) acts under the **President (Discharge of Functions) Act, 1969**.
- If the election of a President or Vice-President is declared void by the Supreme Court, acts done **on or before** the date of the decision **remain valid** (**Article 71(2)**).

Vice-Presidents of India (must-score list)

#	Name	Term
1	Dr. S. Radhakrishnan	1952–1962
2	Dr. Zakir Hussain	1962–1967
3	V.V. Giri	1967–1969
4	G.S. Pathak	1969–1974
5	B.D. Jatti	1974–1979
6	M. Hidayatullah	1979–1984
7	R. Venkataraman	1984–1987

#	Name	Term
8	Dr. Shankar Dayal Sharma	1987–1992
9	K.R. Narayanan	1992–1997
10	Krishna Kant	1997–2002
11	Bhairon Singh Shekhawat	2002–2007
12	Mohammad Hamid Ansari	2007–2017
13	M. Venkaiah Naidu	2017–2022
14	Jagdeep Dhankhar	2022–2025
15	**C.P. Radhakrishnan**	**2025– incumbent**

> **Logic:** First VP = **Radhakrishnan**, not Zakir Hussain. **Neelam Sanjiva Reddy** and **Fakhruddin Ali Ahmed** were never Vice-Presidents. **Hamid Ansari** is the **12th**.

PYQ — UPPCS Prelims 2025, Q119

With reference to the Vice-President of India, which of the following statements is/are correct?

1. The Vice-President is the ex-officio Chairman of the Rajya Sabha.
2. The Vice-President is a member of the Rajya Sabha.

A. Both 1 and 2 B. Neither 1 nor 2 C. Only 2 D. Only 1

Show answer

Logic: Art. 64 makes him Chairman; he is never a member of either House. **Ans: D — Only 1.** He presides as **ex-officio Chairman** but is **not a member** of the Rajya Sabha.

PYQ — UPPCS Prelims 2023, Q5

With reference to the election of the Vice-President of India, which is declared void by the Supreme Court of India, which of the following statement(s) is/are correct?

1. The acts done by him as Vice-President before such declaration are considered valid.
2. The acts done by him as Vice-President on the day of such declaration are not considered valid.

A. Only 1 B. Only 2 C. Both 1 and 2 D. Neither 1 nor 2

Show answer

Logic: Article 71(2) saves acts done **on or before** the Supreme Court's decision date. **Ans: A — Only 1.** Acts up to that day stand; statement 2 is wrong.

PYQ — UPPCS (Mains) 2012

The Vice-President of India is elected by the members of an electoral college comprising —

A. Only elected members of both Houses of Parliament B. All the members of both the Houses of Parliament C. Only elected members of Rajya Sabha and State Assemblies D. Only elected members of State Assemblies

Show answer

Logic: Art. 66 includes **nominated** MPs; State legislatures are out. **Ans: B.** Both Houses — elected **and** nominated. Contrast with the President's college.

PYQ — UPPCS Prelims 2022, Q116

Which one of the following did **NOT** serve as Vice-President before assuming the office of the President of India?

A. Dr. Shankar Dayal Sharma B. Neelam Sanjiva Reddy C. Dr. Zakir Hussain D. R. Venkataraman

Show answer

Logic: Personality trap — Speaker path versus Vice-President path. **Ans: B — Neelam Sanjiva Reddy.** He became President (1977, unopposed) **without** having been Vice-President.

Prime Minister (Art. 74, 75, 78)

- **Appointment (Art. 75):** appointed by the **President** — by convention, the leader of the majority party/coalition (गठबंधन) in the Lok Sabha. The PM is the **real head** of the Council of Ministers; the President is the **nominal** Head of State.
- **Art. 74:** there **shall be** a Council of Ministers with the **PM at the head** to **aid and advise** the President; the advice is **binding** on the President (42nd Amendment made it binding; 44th allowed **one** reconsideration, after which it is binding). Court inquiry into the advice is barred by **Art. 74(2)**.
- **Art. 78:** duties of the PM — to **communicate** all decisions of the CoM to the President, furnish information, and submit matters for the consideration of the Council when the President so requires.
- The PM is the **channel of communication** between the President and the CoM, chairs Cabinet meetings, and advises the President on major appointments and dissolution (विघटन) of the Lok Sabha.
- **Age:** the Constitution does not fix a separate PM age; the practical floor is **25 years** (Lok Sabha eligibility) if the person seeks a Lok Sabha seat, or **30** if only Rajya Sabha membership is intended.
- A PM who sits only in the **Rajya Sabha** may **speak** in the Lok Sabha but **cannot vote** there — so he cannot vote on a **no-confidence** (अविश्वास प्रस्ताव) motion.

> **Logic:** Art. 74 = aid & advise (binding after 44th, one reconsideration). Art. 78 = PM's duty to communicate. A person who is **not a member of either House** can be PM/minister but must become one within **6 months** (Art. 75(5)). Legal name of the Government of India in suits is the **Union of India** (Art. 300).

Council of Ministers (Art. 74, 75, 77, 88)

Identity: Real executive | PM at the head | Collectively responsible to the **Lok Sabha only** | Size capped by the **91st Amendment**

Composition and size

- The Central Council includes the **Prime Minister**, **Cabinet Ministers**, **Ministers of State** (including those with **independent charge**), and **Deputy Ministers**.
- **Article 75(1A)** (inserted by the **91st Constitutional Amendment Act, 2003**): total ministers including the Prime Minister shall **not exceed 15%** of the total strength of the **Lok Sabha**. A parallel State cap sits in **Article 164(1A)** (State floor **12**, ceiling **15%** of the Assembly).
- The Constitution does **not** classify ministers into ranks. The Cabinet / MoS / Deputy ladder is **British parliamentary practice**.
- **Cabinet** means ministers of **Cabinet rank** (plus the PM). The word **"Cabinet"** entered the constitutional text only in **Article 352(3)** via the **44th Amendment**.

Responsibility and tenure

- **Article 75(3):** the Council of Ministers is **collectively responsible** to the **House of the People (Lok Sabha)** — not to the Rajya Sabha.
- **Article 75(2):** ministers hold office during the **pleasure of the President** (in practice, on the Prime Minister's advice) — not "during the pleasure of the Prime Minister" as a constitutional phrase.
- A **no-confidence motion** is **not** named in the Constitution. The procedure lives in **Lok Sabha Rule 198**. At least **50** members must support the notice. Only the **Lok Sabha** can pass it. The Government may itself move a **confidence motion**.

Business of government (Art. 77)

- All executive action of the Government of India is expressed to be taken in the **name of the President** (**Article 77(1)**) — not in the name of the Prime Minister.
- Under **Article 77(3)**, the President makes rules for transaction of business and for **allocation of business** among ministers — the **Government of India (Allocation of Business) Rules, 1961**. Ministries are **not** created by the Prime Minister on the Cabinet Secretary's advice alone.
- On **15 August 1947** there were **18** ministries at the Centre. The present count changes with the Business Rules (dump teaching figure ≈ **53**).

Rights in Parliament and related offices

- Under **Article 88**, every minister may **speak and take part** in either House, a joint sitting, and any parliamentary committee of which he is named a member, but can **vote only in the House of which he is a member**.
- The office of **Deputy Prime Minister** is an **extra-constitutional** political designation. It confers **no** separate constitutional powers of the Prime Minister. The first Deputy Prime Minister was **Sardar Vallabhbhai Patel**.

PYQ — UPPCS Prelims 2021, Q117

Assertion (A): The Council of Ministers in India is collectively responsible to both Lok Sabha and Rajya Sabha.

Reason (R): Members of both Lok Sabha and Rajya Sabha are eligible to become Ministers in the Union Government.

A. Both (A) and (R) are true and (R) is the correct explanation of (A) B. Both (A) and (R) are true, but (R) is not the correct explanation of (A) C. (A) is true, but (R) is false D. (A) is false, but (R) is true

Show answer

A/R logic: A tests Art. 75(3) — Lok Sabha only. R tests eligibility from either House. R is true but does not make A true. **Ans: D — (A) is false, (R) is true.** Collective responsibility is to the **Lok Sabha only**.

Cabinet, Kitchen Cabinet, Committees & Secretariat

Body	Role
Cabinet	Inner body of **Cabinet-rank** ministers plus the PM; the real policy-deciding core. The word "Cabinet" was inserted into **Art. 352** by the **44th Amendment** — it did **not** appear in the original text
Kitchen / Inner Cabinet	Informal group of the PM's most trusted colleagues — **extra-constitutional**
Cabinet Committees	**Extra-constitutional**, set up by the PM as per need — Security (CCS (सुरक्षा कैबिनेट समिति)), Economic Affairs (CCEA), Appointments, Political Affairs, Parliamentary Affairs. If the **PM is a member**, he is **necessarily** the Chairman of that committee
Cabinet Secretariat	Under the **direct charge of the PM** (not the Vice-President); headed by the **Cabinet Secretary** — senior-most civil servant and **ex-officio Chairman of the Civil Services Board**; prepares Cabinet agendas and assists Cabinet Committees
PMO (Prime Minister's Office)	A **staff agency**; headed by the **Principal Secretary** (not the Cabinet Secretary); renamed "PMO" in **1977**
Ministries count	**18** ministries on **15 August 1947**; the present figure changes with Allocation of Business (dump teaching figure ≈ **53**)

> **Logic:** Ministries/Departments are **not** created by the PM on the Cabinet Secretary's advice alone — the President allocates business under Art. 77(3) on the PM's advice. Civil servants implement Cabinet policy; ministerial responsibility still runs to Parliament.

PYQ — UPPCS Prelims 2019, Q30

With reference to Prime Minister's Office (PMO), which one of the statements is/are correct?

1. It came into existence in 1977.

2. It is headed by the Cabinet Secretary.

A. Only 2 B. Both 1 and 2 C. Only 1 D. Neither 1 nor 2

Show answer

Ans: D — Neither. The office existed from 1947 (as the PM's Secretariat; renamed "PMO" in 1977) and is headed by the **Principal Secretary**, not the Cabinet Secretary.

Attorney General of India (Art. 76)

Item	Fact
Status	**First law officer** of the Government of India; **highest law officer**; chief legal adviser to the **Government of India** (not personally to the President alone)
Appointment	By the **President**; must be qualified to be a **Judge of the Supreme Court** (Art. 76(1))
Term / Removal	**No fixed tenure**; holds office **during the pleasure of the President**; Constitution states **no** impeachment-style removal process
Remuneration	Determined by the **President** (Art. 76(4)) — **not** by Parliament
Rights (Art. 76 / 88 / 105)	Right of audience in **all courts**; may **speak/participate** in both Houses and committees but has **no right to vote**; enjoys members' privileges
Restrictions	Not a full-time government servant — **may take private practice**, but **not against the Government of India**; need **not** resign when the appointing ministry falls (no constitutional automatic-resignation rule)
Assisted by	**Solicitor General** & **Additional Solicitors General** — **statutory**, not in the Constitution

Advocate-General of a State (Art. 165) — mirror trap

- Appointed by the **Governor** (not the President); must be qualified to be a **High Court** judge.
- Advises the **State** government; holds office during the **Governor's** pleasure.
- May speak in the State legislature under Art. 177 but cannot vote.

Comptroller and Auditor General (नियंत्रक-महालेखापरीक्षक) of India (Art. 148–151)

Item	Fact
Office	Independent constitutional office under **Art. 148**; Ambedkar (अम्बेडकर) called the CAG probably the **most important officer** under the Constitution
Appointment / removal	Appointed by the **President**; removed **only like a Supreme Court judge** (special-majority address of both Houses — **not** pleasure tenure)

Item	Fact
Tenure	**6 years** or until age **65**, whichever is earlier (CAG Act, 1971); salary equals an **SC judge** (Second Schedule / Act)
After demitting	**Not eligible** for further office under the Union or any State (Art. 148(4))
Role	Guardian of the **public purse**; audits Union and State accounts; "friend, philosopher and guide" of the **Public Accounts Committee**
Reports (Art. 151)	Union reports → **President** → laid before Parliament; State reports → **Governor** → State legislature
Three audit reports	Appropriation accounts; finance accounts; public undertakings
Expenses of office	Charged on the **Consolidated Fund of India** (Art. 148(6)) — **not** voted annually like ordinary demand
Accounts vs audit	**1976** amendment of the CAG Act separated **accounts** from **audit** at the Centre; CAG's Centre task is mainly **audit**

> **Logic:** CAG does **not** exercise exchequer control during Emergency, and has **no judicial power** to prosecute. Ultimate action on CAG comments rests with **Parliament** (via PAC (लोक लेखा समिति)). Contrast: **AG = pleasure**; **CAG = SC-judge security**.

PYQ — UPPCS Prelims 2023, Q12

With reference to the Attorney General of India, which of the following statement(s) is/are correct?

1. A person is appointed as Attorney General who is qualified to be appointed as a Judge of the Supreme Court.
2. The Attorney General can be removed through the same process as the Judges of the Supreme Court.

A. Only 1 B. Only 2 C. Both 1 and 2 D. Neither 1 nor 2

Show answer

Ans: A — Only 1. The AG holds office **during the pleasure of the President** (no fixed removal procedure); statement 2 is wrong.

PYQ — UPPCS Prelims 2020, Q124

Consider the following statements in the context of the Attorney General of India: *(Source note: the two statements are not legible in the repository copy of the paper; options preserved below.)*

A. Only 1 is correct B. Only 2 is correct C. Both 1 and 2 are correct D. Neither 1 nor 2 is correct

Show answer

Answer key not reproducible — statement text missing in the source file. Concept fact: AG = first law officer, SC-judge qualification, **office during pleasure**, right to speak in both Houses **without vote**, may take private briefs **except against the GoI**.

Doctrine of Pleasure

- Rooted in English common law (a Crown servant holds office during the Crown's pleasure).
- In India, **Art. 310** — civil servants of the Union/State hold office **during the pleasure** of the President/Governor, **subject to Art. 311** safeguards.
- The **Attorney General** and **Governors** also hold office during the pleasure of the President.

> **Logic:** Pleasure doctrine (Art. 310) is **restricted by Art. 311** (no dismissal without inquiry for civil servants) and by the constitutional protections for judges, CAG, CEC, etc.

President vs US President (quick contrast)

Point	India	USA
Nature	**Nominal** head; real power with CoM	**Real** executive head
Election	Indirect (Electoral College, PR-STV)	Indirect (Electoral College, but different)
Term	5 years, unlimited re-election	4 years, max 2 terms (22nd Amendment)
Veto	Absolute, suspensive, pocket	Qualified veto (Congress (कांग्रेस) override 2/3)
System	Parliamentary	Presidential

Order of Precedence (Warrant / Table of Precedence)

Identity: Ceremonial rank list for state functions | **Not** constitutional authority | **Not** the presidential line of succession

- The **Warrant of Precedence** (वरीयता) (also called **Table of Precedence**) is issued by the **President's Secretariat** and maintained by the **Ministry of Home Affairs** — central notification **No. 33-Pres/79 (26 July 1979)**, with later amendments.
- It fixes **seating, reception, and procession order** at official and ceremonial occasions only.
- **Note 1 (official fact):** it has **no application** to the day-to-day business of government and **does not** confer legal or executive power.
- Within the **same article/rank**, persons usually take precedence **inter se** by **date of entry** into that rank (or alphabetically where dates are unclear).
- Trap: do **not** confuse this table with **constitutional succession** (उत्तराधिकार) (President → Vice-President → … under Arts. 56–62 / 65).

High-yield ranks (Articles 1–11)

Rank	Dignitaries (key facts)
1	**President**
2	**Vice-President**
3	**Prime Minister**
4	**Governors — within their respective States** only
5	**Former Presidents** (by date of leaving office)
5A	**Deputy Prime Minister** (when office exists)
6	**Chief Justice of India** and **Speaker of Lok Sabha — equal rank**
7	**Union Cabinet Ministers**; **Chief Ministers** (within their States); **Former Prime Ministers**; **Leaders of Opposition** in RS and LS
7A	Holders of **Bharat Ratna** (भारत रत्न) decoration
8	Ambassadors / High Commissioners; **Governors outside their States**; **Chief Ministers outside their States**
9	**Judges of the Supreme Court**
9A	**Chairman, UPSC**; **Chief Election Commissioner**; **Comptroller and Auditor General** (नियंत्रक-महालेखापरीक्षक)
10	**Deputy Chairman, Rajya Sabha**; **Deputy Speaker, Lok Sabha**; **Ministers of State** (Union); **Deputy Chief Ministers** (within State); NITI (नीति) Aayog (नीति आयोग) members (as listed)
11	**Lieutenant Governors** (within UT); **Cabinet Secretary**; **Attorney General of India**; Principal Scientific Adviser

Confused pairs (precedence traps)

Pair	Correct	Trap
Precedence vs succession	**Ceremonial table only**	Treat rank 2 VP as automatic President-in-waiting for all purposes
CJI vs Speaker	**Same rank — 6**	Call Speaker rank 7 or below Cabinet Ministers
Former President vs CJI	**Former President = 5** (above 6)	Place ex-President below Speaker
Governor vs PM	**PM = 3** always at Centre	Governor always outranks PM
Governor “rank 4”	Only **within own State**	Same rank at an all-India Delhi function
AG vs Cabinet Minister	**Cabinet Minister = 7**; **AG = 11**	AG outranks every Minister
CEC / CAG vs SC judge	**SC judge = 9**; **CEC/CAG/UPSC = 9A**	Swap 9 and 9A

Pair	Correct	Trap
Bharat Ratna	**7A** — after rank 7 block	Place with rank 1–3

> **Logic:** Fact **6 = CJI + Speaker**; **11 = AG**; table is **ceremonial**, not constitutional hierarchy. Speaker detail also in **Topic 7 — Parliament**.

Mains link (one frame)

- **President's discretion is shrinking, but not extinct:** pocket veto (no time limit), choice of PM in a hung House (त्रिशंकु सदन), and the "one reconsideration" power under Art. 74 keep a **residual constitutional space** — balanced by the binding nature of ministerial advice (42nd/44th) and judicial review of the pardoning power.